

Amendment No. 1 to HB2017

Todd
Signature of Sponsor

AMEND Senate Bill No. 2028*

House Bill No. 2017

by deleting all language after the caption and substituting:

WHEREAS, the General Assembly of the State of Tennessee has enacted a comprehensive statutory framework governing the conservation, management, and regulation of wildlife and hunting within this State; and

WHEREAS, pursuant to State law, the General Assembly has delegated authority to promulgate rules and regulations concerning hunting, including seasons, methods of take, licensing, and related matters, to the Tennessee Fish and Wildlife Commission; and

WHEREAS, the Tennessee Fish and Wildlife Commission exercises such delegated authority on a statewide basis in order to ensure uniform standards, science-based wildlife management, and consistent enforcement throughout the State; and

WHEREAS, the preservation and regulation of wildlife resources and hunting activities are matters of statewide concern that require centralized oversight and uniform application; and

WHEREAS, local enactments that explicitly or implicitly affect, regulate, restrict, or prohibit hunting in a manner inconsistent with or supplementary to State statutes or regulations of the Tennessee Fish and Wildlife Commission create confusion, undermine uniformity, and interfere with the State's comprehensive regulatory scheme; and

WHEREAS, it is the intent of the General Assembly to reaffirm that the regulation of hunting is preempted by State law and by the duly promulgated rules and regulations of the Tennessee Fish and Wildlife Commission, and may not be superseded or duplicated by local governmental action; and

WHEREAS, nothing in this act is intended to prohibit or limit a local government from enforcing generally applicable criminal laws, including laws relating to reckless endangerment, unlawful discharge of a firearm, or other conduct unrelated to the lawful regulation of hunting; provided, that such enforcement does not operate as a de facto regulation of hunting authorized under State laws or commission proclamations or duly promulgated rules; now, therefore, BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-17-1314, is amended by adding the following as a new subsection:

(j) Notwithstanding subdivision (b)(2) or another law to the contrary, a city, county, town, municipality, or metropolitan government shall not regulate the manner and means of taking wildlife, including the discharge of a firearm while lawfully hunting. The manner and means of taking wildlife is regulated pursuant to rules promulgated and proclamations issued by the Tennessee fish and wildlife commission under its delegated authority in title 70.

SECTION 2. Tennessee Code Annotated, Section 70-4-107(c), is amended by adding the following as a new subdivision:

(5) Upon proclamation by the commission, any person lawfully hunting under this section is expressly authorized to utilize the commission's authorized manner or means of taking wildlife, which may include the discharge of a firearm within the area so designated by the commission during the hunting season opened by the commission as long as the manner and means are consistent with this title.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.